

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD SUPPORT, RESERVED FINANCIAL ISSUES; REQUEST FOR
ORDER : TEMPORARY EMERGENCY ORDER, ORDER SHORTENING TIME; SEE #7 OTHER
ORDERS REQUESTED

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Request for Order filed 1/7/26:

A. Procedural History

- 1) The parties are Petitioner Erica Plam (Mother) and Respondent Eric Hudson Plam (Father).
- 2) On 9/5/25, the Court ordered the immediate reappraisal and sale of the San Francisco property located at 1850 10th Avenue in San Francisco, California (against Mother's request to delay the sale of the home for 10 months), with additional orders regarding the sale process, expenses incurred to effectuate the sale, carrying costs, and sale proceeds. The Court reserved jurisdiction over the sale of the home. See Findings and Order After Hearing (FOAH) filed 9/5/25.
- 3) On 10/7/25, the Court issued a Final Statement of Decision, which includes disposition of the San Francisco property and the Reno property (located at 712 S. Arlington Avenue Reno, Nevada) and other orders related to property division. The Court ordered, in pertinent part:

- a. Regarding the San Francisco property, the Court ordered that the net sale proceeds of the home be divided equally between the parties minus Family Code section 2640 reimbursements. The Court also stated that expenses related to the sale of the home will be divided equally between the parties. See page 6-7.
 - b. “*Epstein* credits” are to be paid from the community. (*In re Marriage of Jefferies* (1991) 228Cal.App.3d 548.) See page 8.
 - c. The Court exercised its discretionary authority and awarded \$25,000 of *Epstein* credits to Father for “reimbursement of separate property mortgage payments, property tax payments, and home insurance for the San Francisco home post separation during the time that [Mother] had exclusive use of the residence.” The Court declined to award *Watts* charges to either party. See page 9.
 - d. Regarding the Jeep vehicle purchased in 2019, the Court declined to issue *Epstein* credits or *Watts* charges. The Court awarded proceeds of a lemon law settlement to Father and ordered Mother to repay Father \$25,201, which she received from the lemon law settlement. See page 10.
 - e. Regarding business taxes, the Court ordered Mother to pay Father \$6,000 for payment of business taxes. See page 10.
- 4) At the prior 2/17/26 hearing on Father’s 1/7/26 Ex Parte Request for Order, the Court set a review hearing on 5/19/26 stating, “The Court reserves jurisdiction over the sale of the home including division of the sale proceeds consistent with the Court’s 9/5/25 order and further order of the Court.” See FOAH filed 3/3/26.
 - 5) At the prior 3/10/26 hearing, the Court disbursed a portion of the net sale proceeds of the San Francisco property to the parties as follows: (a) \$44,230.48 to Father off the top at closing and (b) \$50,000 to each party. See FOAH filed 4/2/26.
 - 6) On 4/7/26, Judgment was entered incorporating the 10/7/25 Final Statement of Decision.
 - 7) On 4/14/26, Father filed a Request for Order seeking disbursement of funds from the net sale proceeds of the San Francisco property.
 - 8) At the prior 4/23/26 hearing, the Court ordered: (a) Father agreed to buy out Mother’s interest in the Reno property for \$170,000; (b) each party shall receive \$150,000 of the net sale proceeds of

1 the San Francisco property; (c) Father's \$150,000 distribution shall be held until Mother receives
2 the buyout payment for the Reno property; and (d) the remaining approximately \$106,632 in
3 funds from the net sale proceeds of the San Francisco property shall remain in counsel for
4 Mother's client trust account not be distributed without written agreement or further court order.
5 See 4/23/26 Minute Order.

6 9) On 5/6/26, Mother filed a Responsive Declaration in opposition to Father's 4/14/26 Request for
7 Order.

8 10) On 5/12/26, Father filed a Reply Declaration reiterating his requests related to disbursement of
9 funds from the net sale proceeds of the San Francisco property.

10 11) At the prior 5/19/26 hearing, the Court ordered:

11 a. It is undisputed that approximately \$106,632.64 of the net sale proceeds of the San
12 Francisco property remains in counsel for Mother's client trust account (i.e., Mother
13 acknowledges this amount in her 5/6/26 Responsive Declaration and Father
14 acknowledges this amount in his 5/12/26 Reply Declaration), which the Court
15 acknowledged and ordered not be distributed without written agreement or further court
16 order. See 4/23/26 Minute Order.

17 b. Based on the pleadings, the Court finds the parties do not agree on how the remaining
18 funds should be distributed; therefore, the Court finds good cause to rule of Father's
19 requests (set forth in his 4/14/26 Request for Order) and distribute the remaining net sale
20 proceeds of the San Francisco property in accordance with the Final Statement of
21 Decision issued 10/7/25 as follows:

22 c. Father's request for \$25,000 in *Epstein* credits is GRANTED, the full balance of which
23 shall be paid from the undivided funds. This leaves \$81,632.64 for equal distribution
24 between the parties ($\$106,632.64 - \$25,000 = \$81,632.64$) or approximately \$40,816.32
25 awarded to each party, subject to the orders below.

26 d. Father's request for \$25,201 in Jeep settlement refund is GRANTED, the full balance of
27 which shall be paid from Mother's share of the funds.

28 e. Father's request for \$6,000 in business taxes is GRANTED, the full balance of which
29 shall be paid from Mother's share of the funds.

- 1 f. Father's request for \$22,115.24 for foreclosure cure reallocation is DENIED as Father
2 was previously reimbursed \$44,230.48 from the San Francisco home sale proceeds for
3 curing the mortgage default and preventing foreclosure. See FOAH filed 4/2/26.
- 4 g. Father's request for \$2,785.04 in reimbursement for unauthorized home repairs is
5 DENIED as the Court ordered the cost of home repairs divided equally.
- 6 h. Father's request for \$440.40 in mortgage late fee charges and \$3,843.36 in mortgage
7 delay damages is DENIED.
- 8 i. Father's request for reimbursement of \$1,663.10 for a Bank of America Cashier Check
9 issued in his name only is GRANTED, the full balance of which shall be paid from
10 Mother's share of the funds.
- 11 j. Counsel for Mother shall distribute the funds in accordance with the orders made herein
12 within 60 days of this hearing.
- 13 k. In so far as there remain issues related to the exchange of personal property; the parties
14 shall follow the process ordered at the prior 4/23/26 hearing. See 4/23/26 Minute Order.
- 15 l. The Court reserves jurisdiction over Father's request for \$18,784.79 in attorney's fees
16 sanctions and additional request for \$5,000 in fiduciary-duty sanctions and sets the issue
17 for hearing on 7/23/26. The parties shall submit updated Income and Expense Declaration
18 10 days prior to hearing and any supplemental declaration by 6/23/26 and reply by
19 7/10/26.

20 12) Thereafter, the 7/23/26 hearing was continued to 8/20/26.

21 13) On 7/10/26, Father filed a supplemental declaration regarding his request for \$18,784.79 in
22 attorney's fees sanctions and additional request for \$5,000 in fiduciary-duty sanctions. Father
23 states he has won all five ex parte applications brought in the matter (two by Father and three by
24 Mother).

25 14) On 7/10/26, Father filed an updated Income and Expense Declaration.

26 15) On 7/17/26, Mother filed a Reply Declaration in opposition to Father's request and in dispute of
27 Father's position. Mother asserts she does not have the ability to pay sanctions.

28 16) On 7/28/28, Mother filed an updated Income and Expense Declaration.

29

1 17) On 8/11/26, the Court denied Mother's Motion for Reconsideration of the Court's 5/19/26 order
2 (filed 6/17/26).

3 **B. Findings and Order**

4 1) Father's request for \$18,784.79 in attorney's fees sanctions under Family Code section 271 is
5 GRANTED. The Court finds Mother's conduct throughout this litigation frustrated the policy of
6 the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by
7 encouraging cooperation between the parties and attorneys. The Court finds this award will not
8 impose an unreasonable financial burden on Mother. Mother shall pay Father this balance in full
9 by 9/20/26.

10 2) Father's request for \$5,000 in fiduciary-duty sanctions under Family Code section 1101 is
11 DENIED as Father did not provide sufficient evidence to prove his claim of breach of fiduciary
12 duty.

13 II. Request for Order filed 7/1/26:

14 **A. Procedural History**

15 1) On 7/1/26, Mother filed a Request for Order seeking: (a) a review hearing in 60 days to permit
16 completion of post-judgment financial discovery and review of unresolved financial issues; (b) an
17 order requiring the parties to continue complying with all prior orders regarding identification and
18 exchange of personal property located in the Reno and San Francisco properties; (c) \$25,000 in
19 Family Code section 2030 attorney's fees; and (d) reservation of jurisdiction over Jeep-related
20 issues.

21 2) On 8/7/26, Father filed a Notice of Limited Scope Representation indicating he has legal
22 representation for the 8/20/26 hearing.

23 3) On 8/7/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
24 Father requests the Court deny Mother's request or, in the alternative, issue a protective order
25 limiting post-judgment discovery. Father seeks \$7,500 in sanctions pursuant to Family Code
26 section 271 and Code of Civil Procedure section 2023.030.

27 4) On 8/7/26, Father filed a Memorandum of Points and Authorities.

28 5) On 8/7/26, counsel for Father filed a declaration regarding meet and confer efforts.

29 **B. Findings and Order**

- 1) Mother's request for a review hearing in 60 days to permit completion of post-judgment financial discovery and review of unresolved financial issues is DENIED as there is no statutory basis for the Court to grant such relief; the discovery deadline and time to appeal entry of Judgment passed.
- 2) Furthermore, Family Code section 218 only permits post-judgment discovery on specific issues currently pending before the Court. There are no other motions currently pending before the Court.
- 3) Mother's request for \$25,000 in Family Code section 2030 attorney's fees is DENIED. The Court does not find that an award of \$25,000 in attorney's fees is reasonable or necessary here.
- 4) Father's request for 7,500 in sanctions pursuant to Family Code section 271 and Code of Civil Procedure section 2030 is GRANTED. The Court finds the filing of the instant Request for Order unnecessarily increased legal fees and constitutes misuse of the discovery process. The Court further finds this award will not impose an unreasonable financial burden on Mother. Mother shall pay this balance in full by 9/20/26.
- 5) All prior orders not in conflict with the orders made herein remain in full force and effect.
- 6) Counsel for Father shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).